Construction Agreement

This Agreement is made on June 1, 2026, between Pinnacle Home Contracting, Inc. (“Contractor”), and Janet Whitfield (“Owner”), for the property located at 412 Oakdale Court, Tiburon, CA 94920.

Article 1 — Scope of Work

Contractor shall perform a full home addition consisting of a 400 sq ft primary bedroom suite, including framing, electrical, plumbing rough-in, drywall, insulation, windows, and exterior siding to match existing structure. Detailed plans attached as Exhibit A.

Article 2 — Contract Sum

The total Contract Sum is $187,400, subject to adjustment per Article 5 (Change Orders).

Article 3 — Payment Schedule

- 10% deposit upon signing ($18,740)
- 25% upon completion of framing
- 25% upon completion of rough-in (electrical/plumbing)
- 25% upon completion of drywall and insulation
- Final 15% upon Owner’s final walkthrough and approval

Article 4 — Project Schedule

Substantial completion expected within 120 days of permit issuance. Contractor is not liable for delays caused by permitting, weather, or supply shortages.

Article 5 — Change Orders

All changes to scope must be documented in writing and signed by both parties before work proceeds, including adjusted price and schedule impact.

Article 6 — Warranty

Contractor warrants all workmanship for one (1) year from substantial completion. Manufacturer warranties on materials and fixtures are passed through to Owner.

Article 7 — Insurance and Licensing

Contractor shall maintain general liability insurance of at least $1,000,000 and workers’ compensation coverage as required by California law. Contractor’s license number: CSLB #000000 (unverified).

Article 8 — Lien Waivers

Contractor shall provide a conditional lien waiver with each payment and an unconditional final waiver upon receipt of final payment.

Article 9 — Indemnification

Owner agrees to indemnify and hold harmless Contractor, its subcontractors, employees, and agents from any and all claims, damages, losses, or expenses arising from the Work, including those caused by Contractor’s own negligence.

Article 10 — Termination

Either party may terminate this Agreement for material breach with 10 days’ written notice and opportunity to cure. Upon termination, Owner shall pay for all work completed to date plus 20% of the remaining unperformed contract value as a termination fee.

Article 11 — Dispute Resolution

Disputes shall first be addressed through good-faith negotiation, then non-binding mediation in Marin County, CA, before either party may pursue litigation.

Article 12 — Entire Agreement

This Agreement, including all referenced exhibits, constitutes the entire agreement between the parties.

Signatures

_____ Contractor Date: _____ _____ Owner Date: _____